

Court No. - 39

Case :- WRIT - C No. - 3091 of 2021

Petitioner :- Iqbal Ahmad

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- P.H. Vashishtha, Ranjeet Singh

Counsel for Respondent :- C.S.C., Pranjal Mehrotra

Hon'ble Naheed Ara Moonis, J.

Hon'ble Dinesh Pathak, J.

Heard learned counsel for the petitioner, learned Standing Counsel appearing on behalf of respondent no. 1 and Sri Pranjal Mehrotra, learned counsel appearing on behalf of respondent nos. 2 and 3.

This writ petition has been filed seeking following reliefs:-

" (i) Issue a writ, order or direction in the nature of Writ of Certiorari calling for the record and quashing the entire recovery proceeding against the petitioner for realization of the alleged electricity dues for a sum of Rs. 1,09,612/- in respect of her service connection No. 2313118648 in furtherance of the Assessment Cum Recovery Notice No. 2638 dated 16/09/2019 and demand notices dated 31/12/2019 under Section 3 and 5 of the U.P. Government Electrical Undertaking (Dues Recovery) Act, 1958, send by respondent no. 3 to the petitioner.

(ii) Issue a writ, order or direction in the nature of Writ of Mandamus, directing the respondents from realizing the alleged electricity dues for the sum of Rs. 1,09,612/- from the petitioner in respect of service connection no. 2313118648 by adopting any coercive method pursuant to impugned recovery proceedings.

(iii) Summon the lower court record.

(iv) Issue any suitable writ, order or direction which this Hon'ble Court may deem fit and proper under the facts and circumstances of the case to meet the ends of justice."

The submission of learned counsel for the petitioner is that the provisional assessment cum recovery notice dated 16.9.2019, appended as Annexure No. 5 to the writ petition, showing that inspection was done on 14.9.2019 where as a checking report was submitted on 25.8.2019 that no irregularity was found in the campus of the petitioners. The report dated 25.8.2019 is appended as Annexure no. 3 to the writ petition. The provisional assessment has been treated as final assessment and now the recovery citation has been issued compelling the petitioner to pay the amount of Rs. 1,09,612/-.

Learned counsel for the petitioner further submits that the petitioner has not been given any opportunity of hearing and as

such, the recovery notices served upon them, is bad in the eyes of law. It is further contended that the respondents have not proceeded in accordance with the provisions contained in Section 126 (3) of the Act, 2003, Clause 6.8 as well as Clause 8.1 of the Electricity Supply Code, 2005 (in short 'Code, 2005') as no opportunity of hearing has been afforded to the petitioner.

Learned counsel appearing on behalf of Power Corporation i.e. respondent nos. 2 and 3 submits that on the inspection of the premises of the petitioner, use of electricity by illegal means was found. Hence, Provisional Assessment Notice was issued on 16.9.2019 and as no objection was filed, the same was treated as final assessment.

At this stage, we deem it proper to reproduce paragraph 16 of the judgment passed in the case of **Shishir Jain vs. Paschimanchal Vidyut Vitran Nigam Ltd. and another**, 2017 (3) AWC 3084, by a Division Bench of this Court. The relevant paragraph 16 of aforesaid judgment reads as under :

"16. Be that as it may, in case there is no final assessment as suggested by the learned counsel for the respondent, the petitioner cannot be compelled to deposit the amount of provisional assessment. Without making final assessment after considering the objection and giving opportunity to the petitioner, he cannot be compelled to deposit any amount. In such circumstances, the two impugned notices dated 4.3.2017 issued by respondent no.2 are not liable to be sustainable and are hereby quashed."

In view of aforesaid, we are of the opinion that petitioner could not be compelled to deposit any amount on the basis of provisional assessment without affording any opportunity of hearing to them, while making any final assessment, that too without supplying the copy of the said order. The entire procedure adopted by respondent no.3 dehors the statutory provisions of Section 126 of the Act, 2003, Clause 6.8 and Clause 8.1 of the Code, 2005. The Clause 8.1 of the Code, 2005 provides the procedure to be adopted by licensee for inspection, provisional assessment, hearing and final assessment in case of theft of electricity. Amount which is mentioned in the provisional assessment has been treated as final assessment without affording any opportunity of hearing, the same is in violation of principles of natural justice.

Considering the facts and circumstances of the case, but without entering into the merits of the case, this writ petition is **disposed of** directing the petitioner to move a fresh representation before respondent no.3 within two weeks' from today ventilating his grievances and in case, such representation is moved, the same shall be considered and decided by respondent no.3 who shall pass an appropriate, reasoned and speaking order regarding

final assessment after giving an opportunity of hearing to the petitioner, as expeditiously as possible, preferably within a period of four weeks' from the date of receipt of a copy of this order.

For a period of six weeks or till any final decision is taken on the representation of the petitioner, whichever is earlier, no coercive action shall be taken against them pursuant to recovery citation.

It is made clear that if the petitioner fails to file the representation as indicated above, he shall not be entitled to get the benefit of this order.

Order Date :- 2.2.2021

Saurabh